

Boulder County Jail Adult Custody Form

(Form Must be Complete)

Arresting Agency Case #: 150012043	Arresting Agency: Boulder Police Department DATE FILED: September 18, 2015
Arresting Officer's Full Name: EKWO,STERLING	Arresting Officer's Number: 6774
Is Arrestee to be booked and released? Yes ☒ No ☐	
Per Arresting Officer: EKWO,STERLING	

Biographic Information

Inmate's Name: NIMER Last:	First: DAVID	Middle: GARIBOTTO	DOB: 05/31/1991
Alias Name:			Alias DOB:
Sex: M	Race: WHITE	Ethnicity: NOT OF HISPANIC	Height: 603
Weight: 175	Hair: BRO	Eyes: BRO	Marital: Single
POB City: SAN FRANCISCO		State: CALIFORNIA	Country: USA
SSN: 608647380	Driver / I.D. (State & #): 13-260-0591 CO		
Home Address: 1700 17TH ST #B1			City: BOULDER
State: CO	Zip: 80302	Phone: H -	W -
Employment/School Info:		Occupation:	
Address:	City:	State:	Phone:

Triage Questions to be asked by Arresting Agency

Has inmate made any statement or shown any behavior that you are aware of that would cause you to believe he/she may be suicidal? Yes ☐ No ☒		If Yes, provide details: ##
n		
Medicial Clearance: Yes ☐ No ☒	Medication Required: Yes ☐ No ☒	
Hospital: n	Name: n	
List any medical conditions the arrestee has that you are aware of: n		
Which best describes arrestee's behavior with arresting/transporting officers... Cooperative ☐ Non-response ☐ Verbally antagonistic ☒ Combative ☐		
Any other information you are aware of that would be useful for inmate management.		
Have you seen any indication that the arrestee suffers from any mental illness?		

Arrest Information

Location Arrest: 14TH ST/CASCADE AV, BOULDER

Location Offense: 15TH ST/CASCADE AV, BOULDER

Date of Arrest: 09/17/2015

Time of Arrest: 22:59:00

Date of Offense: 09/17/2015

Time of Offense: 22:41:00

Associated Vehicle Information

Year: 2009

Make: GMC

Model: YUK

Color: WHITE

VIN#: 1GKFK33059R243902

Impounded? Yes ☐No ☒

Impounded by (agency/officer): Boulder Police Department / EKWO,STERLING

Arrestee Vehicle Location or Towing Company:

License State: AZ

License Type: PASSENGER CAR

License Number: AKS6414

Exp. Date:

Damage / Condition:

Victim Information

Is this a Domestic Violence related arrest?: Yes ☐ No ☒Does any victim wish to be notified upon arrestee's release?: Yes ☐ No ☐

If yes, provide the following information: (Victim PIN# If Known)

Name:

Victim (1) PIN#:

DOB:

Sex:

Race:

Address:

City:

State:

Phone # Home:

Work:

Other:

Are there additional victim notifications?

Yes

No

If yes, use additional information below

Name:

Victim (2) PIN#:

DOB:

Sex:

Race:

Address:

City:

State:

Phone # Home:

Work:

Other:

PROBABLE CAUSE ARREST AFFIDAVIT

3

Case #: 150012043

Arrestee: NIMER, DAVID GARIBOTTO

DOB: 05/31/1991

I, EKWO, STERLING, swear under penalty of perjury that there is probable cause for the arrest of the above named individual for the charge(s) stated in the attached document; that the facts are true and correct to the best of my knowledge, information, and belief; and that the facts supported the arrest of the defendant.

382 #6774

Law Enforcement Officer's Signature

EKWO, STERLING

Law Enforcement Officer's Printed Name

Law Enforcement Agency: Boulder Police Department

I have reviewed the above materials and determined that:

- ☐ They contain probable cause for the arrest of the above named individual.
- ☐ They do not contain probable cause for the arrest of the above named individual and he/she is ordered released on a personal recognizance bond.

BOND AMOUNT AND CONDITIONS

AMOUNT: \$

Type:

- ☐ Cash/Surety/Property
☐ Personal Recognizance
☐ Co-signed PR Bond

BOND CONDITIONS:

- ☐ None
☐ No Contact With: _____
☐ No Contact Includes Victim Child(ren)
☐ Pretrial Supervision
☐ Report to Probation (within 24 Hours of release)
☐ Substance Abuse Monitoring (as determined by Community Justice Services)
☐ Drug Testing
☐ Other Conditions: _____

- ☐ No Alcohol
☐ No Non-prescribed Drugs
☐ Posses No Weapons
☐ Further Bond Evaluation
☐ No Driving
☐ No Driving Without Valid License
☐ No Contact With Anyone Under 18 Years of Age
☐ Sobriotor
☐ Pretrial EHM
☐ Pretrial EHM With Sobriotor

Date

Time

Judge/Magistrate

Arresting Agency Case Number: 150012043

Charges

# 1 - Statute (literal): 42-4-1301(1)(B)	Charge (literal): DWAI	
Charge Level: Misdemeanor - Unclassified	Jurisdiction:	Bond \$:
Warrant # / Dkt #:	Summons #: TS123534	
# 2 - Statute (literal): 42-4-703	Charge (literal): Failed to yield at yield intersectio	
Charge Level: Traffic - Unclassified	Jurisdiction:	Bond \$:
Warrant # / Dkt #:	Summons #: TS123534	

Narrative

In accordance with State Law the County Attorney's Office has determined that juvenile names can not be released to the public.

Will you mention a Juvenile Name: Yes ☐ No ☒ Arresting Agency Case Number: **150012043**

Synopsis

This report will document the arrest of David Garibotto Nimer for Driving a Vehicle While Ability Impaired by Alcohol and Failing to Stop at a Stop Sign on 09/17/15 at 2259 hours at 15th Street and Cascade Avenue, City / County of Boulder, State of Colorado. This case is cleared with one adult arrest.

Narrative

On 09/17/15 at approximately 2241 hours, I, Officer Sterling Ekwo, was driving a marked patrol vehicle eastbound on Cascade Avenue approaching 15th Street. I observed a white GMC Yukon driving westbound on Cascade, approaching 15th Street, at high rate of speed. The Yukon slowed down, but failed to stop at a stop sign on Cascade at 15th Street, traveling through the intersection still at a high rate of speed. After the Yukon passed me, I immediately turned around, and initiated a traffic stop on the vehicle on Cascade east of 14th Street, which had an Arizona license plate of AKS6414.

I contacted the driver of the vehicle, who was identified as David Nimer through a Colorado Driver License. I observed Nimer had bloodshot watery eyes, and the odor of an alcoholic beverage on his breath. I asked where Nimer where he was coming from, and he stated he was coming from work in Louisville. I asked Nimer for his address, and he stated he lived at 1700 17th Street in Boulder. I asked Nimer where he was going, and he stated he was trying to return home, because the Yukon belonged to his roommate, and his roommate needed the vehicle back. I asked Nimer why he was driving the opposite direction from his residence, and he stated he needed to drop someone off first.

I told Nimer of the indicia I saw, and asked him how much he had to drink. He stated he had one or two drinks within the past hour and half to two hours.

I called for a cover unit, and Officer Brad Kithcart responded.

I asked Nimer to step out of the vehicle, and he complied. I asked Nimer if he would be willing to perform voluntary roadside maneuvers, and he stated that he would. Nimer did not complete these maneuver satisfactorily as compared to a sober driver. I placed Nimer under arrest at 2259 hours. The Yukon was locked and left at the scene.

I advised Nimer of Colorado Express Consent, and he chose a breath test. I transported Nimer to the Boulder Police Department. Nimer stated several times that he made a mistake by drinking alcohol and driving. Nimer completed a breath test at 2343 hours, with a result of 0.056 g/210L. I then transported Nimer to the Boulder County Jail. While en route to the jail, Nimer complained that I was ruining his life, stated that I was not good police officer for arresting him, and said, "Fuck you" to me. While at the jail, Nimer's poor attitude continued, and he started to try to stare me down.

Nimer is charged with Driving a Vehicle While Ability Impaired and Failing to Stop at a Stop Sign. Nimer is to be booked and released.

This case is cleared with one adult arrest.

RELEVANT TIMES:

Time of Stop: 2241

Time of Roadside: 2252

Time of Arrest: 2259

Time of Breath Test: 2343

FILED IN
JUDICIAL

SEP 18 2015

BOULDER

DUI Field Notes

☒ BOULDER POLICE

☐ UNIVERSITY OF COLORADO POLICE

Name	NIMER, DAVID GARIBOTTO	DOB	05/31/91	Case#	15-12043
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PL#	13-260-0591	Date of Stop	09/17/15	Time	2241	Stopping Officer Name & #	EXWO 16774
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PC for Stop: FAILED TO STOP AT STOP SIGN

Observations of the Stop: Driver EYES, ODOOR, SAID HE WAS GOING TO 17TH ST, BUT COME THE OPPOSITE DIRECTION

Admissions of Alcohol or Drugs (How Much? When was Last Drink?)
ONE OR TWO DRINKS AT FRIENDS HOUSE

Eye	☐ Normal ☐ Red ☒ Bloodshot ☒ Watery ☐ Pinkish Glaze	Pupils: ☐ Large ☐ Small ☐ Other							
Breath	☐ Normal ☒ Odor of Alcohol ☐ Other								
Speech	☐ Normal ☐ Slow ☐ Slurred ☐ Fast ☐ Deliberate ☐ Other								
Movements	☐ Normal ☐ Slow ☐ Deliberate ☐ Other								
Physical Defects	☐ Yes ☒ No	Medication or Drugs	☐ Yes ☒ No	Under Care of Dr / Dentist	☐ Yes ☒ No	Eye Problems: Contacts/Glasses	☐ Yes ☒ No	Anything in Mouth	☐ Yes ☒ No
Medical/Drugs or Other Problems									

Standardized Field Sobriety Maneuvers									
Horizontal Gaze Nystagmus				Walk and Turn				One Leg Stand	
Pupils Equal ☒ Yes ☐ No Equal Tracking ☒ Yes ☐ No									
Lack of Smooth Pursuit				☐ Can't keep Balance ☒ Starts Too Soon				☒ Missed Heel to Toe ☒ Stepped Off Line ☐ Raised Arms ☐ # of Steps Taken	
Distinct and Sustained Nystagmus @ Max Deviation								9 ways ☒ Uses arms to balance ☒ Hops ☐ Feet Down ☐	
Nystagmus Onset Before 45 Degrees									
Total Pts (8 possible)				Improper Turn (Describe, IP)				Cannot Do (Explain)	
				Cannot Do (Explain)					
Vertical Nystagmus ☒ No ☐ Yes				4				Total Pts (8 possible) 3	
								Total Pts (4 possible) 2	

Modified Romberg	Finger to Nose	Notes (Type of Footwear, Level Pavement, etc)
Balance (eyes closed) 	Right Left Draw Lines From Spot Touches 	NIKE SNEAKERS
Internal Clock Estimated at 30 sec.		

Location of Maneuvers	Weather	Time of Maneuvers
1400 BLK OF CASCADE	CLEAR	2252

Officer Completing Maneuvers

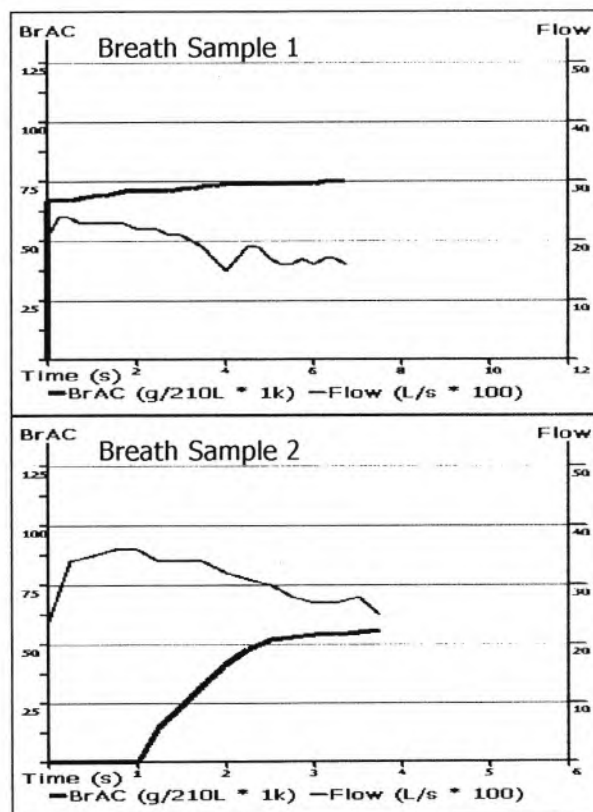
Intoxilyzer 9000 Evidential Breath Alcohol Test (EBAT) Test Report

Subject Name: NIMER, DAVID DOB: 05/31/1991 Sex: Male Driver License: 132600591 State: CO Zip Code: 80302	Location: BOULDER POLICE DEPARTMENT Serial Number: 90-000346 Test Number: 0346150160 Case Number: 15-12043 Date & Time of Offense: 09/17/2015 22:41
Intoxilyzer Operator: EKWO, STERLING O Last Certification Date: 05/06/2015 Agency: BOULDER POLICE DEPARTMENT	Arresting Officer: EKWO, STERLING O Agency: BOULDER POLICE DEPARTMENT Crash: No Injury: No

NIMER, DAVID
 Test Date: 09/17/2015

20-minute deprivation period	Start Time: 23:16	End Time: 23:36
☒ The 20-minute deprivation period has been conducted at the certified EBAT facility by a certified EBAT instructor or operator that is in an active status. ☒ The subject has removed any foreign material from the mouth cavity that is not permanent in nature, prior to starting the 20-minute deprivation period.	☒ The subject has been deprived access to foreign material that may be introduced into the mouth cavity during the 20-minute deprivation period. ☒ The subject has been observed for signs of belching, regurgitation, or intake of any foreign material into the mouth cavity during the 20-minute deprivation period.	

EBAT Test Sequence	g/210L	Time
Air Blank	0.000	23:36:24
Sim Temp	33.9 C	
Wet Cal Chk	0.097	23:36:51
Air Blank	0.000	23:37:31
Subject Sample	0.075	23:38:20
Breath Volume	1.41 Liters	
Air Blank	0.000	23:39:15
Diagnostics	Passed	23:39:19
Air Blank	0.000	23:39:56
Wait		23:41:59
Air Blank	0.000	23:42:36
Subject Sample	0.056	23:43:01
Breath Volume	1.22 Liters	
Air Blank	0.000	23:43:49
Sim Temp	33.9 C	
Wet Cal Chk	0.097	23:44:16
Air Blank	0.000	23:44:55
Final Result	0.056 g/210L	



COMMENTS:
 TRIED NOT BLOWING INTO THE TUBE

I am currently certified as an EBAT operator and attest that this Evidential Breath Alcohol Test (EBAT) has been performed in compliance (5CCR 1005-2) following the procedures set forth by the CDPHE.
 I authenticate the information provided on this report is produced by the certified EBAT instrument used to perform this test.

SR 46774

09/17/2015

Certified EBAT Instructor or Operator Signature Date

COLORADO DEPARTMENT OF PUBLIC HEALTH AND ENVIRONMENT

Pursuant to the Colorado Board of Health Rules Pertaining To The Testing Of Alcohol And Other Drugs (5-CCR1005-2), The CDPHE certifies and approves the use of the listed Intoxilyzer 9000 (I-9000) to perform Evidential Breath Alcohol Testing (EBAT) for the purpose of determining alcohol content

I-9000 Serial Number

90-000346

Certification Period

12/17/2014 - 12/17/2015

unless previously rescinded.



Colorado Department
of Public Health
and Environment

Laura Gillim-Ross

Laura Gillim-Ross, PhD, Director
Laboratory Services Division

Certificate # 03461400021

Intoxilyzer 9000 (I-9000) Instrument Performance Report (IPR)

Subject Name:

NIMER, DAVID

DOB: 05/31/1991

Sex: Male

Driver License 132600591

State: CO

Zip Code: 80302

Location: BOULDER

POLICE DEPARTMENT

Serial Number: 90-000346

Test Number: 0346150160

Case Number: 15-12043

Date & Time of Offense: 09/17/2015 22:41

I-9000 Certified Solution Change Record

Test Date: 06/24/2015

Test Time: 18:49:58

Instructor User ID: 714933

Lot Number: 15050

Bottle Number: 674

Expiration Date: 03/09/2017

Target Value: 0.100 g/210L

Target Range: (0.095 - 0.105)g/210L

Test	g/210L	Time
Air Blank	0.000	18:50:21
Wet Cal Chk	0.097	18:50:47
Air Blank	0.000	18:51:27
Wet Cal Chk	0.099	18:51:54
Air Blank	0.000	18:52:34
Wet Cal Chk	0.098	18:53:01
Air Blank	0.000	18:53:40
Wet Cal Chk	0.098	18:54:07
Air Blank	0.000	18:54:46
Wet Cal Chk	0.099	18:55:13
Air Blank	0.000	18:55:52
Wet Cal Chk	0.101	18:56:19
Air Blank	0.000	18:56:59
Wet Cal Chk	0.098	18:57:25
Air Blank	0.000	18:58:05
Wet Cal Chk	0.100	18:58:31
Air Blank	0.000	18:59:11
Wet Cal Chk	0.098	18:59:37
Air Blank	0.000	19:00:17
Wet Cal Chk	0.098	19:00:43
Air Blank	0.000	19:01:23

Average 0.0986
Standard Deviation 0.0012
Relative Std Dev 0.0119
60-day Average 0.096

I-9000 Verification Record

Test Date: 12/17/2014

Test Time: 08:54:51

Technician User ID: 732516

Certificate #: 0346140002I

Alcohol Value	Alcohol Found	Acceptable Range
.020	0.017	(0.015 - 0.025)
.040	0.037	(0.035 - 0.045)
.050	0.047	(0.045 - 0.055)
.080	0.076	(0.075 - 0.085)
.100	0.098	(0.095 - 0.105)
.150	0.146	(0.143 - 0.158)
.200	0.199	(0.190 - 0.210)
.300	0.297	(0.285 - 0.315)
.400	0.400	(0.380 - 0.420)
Interferent	*	

Verification Test: PASS

Stability Test: PASS

EBAT Test: PASS

Invalid Sample: PASS

Improper Sample: PASS

I-9000 60-Day Exception Message Record

Exception Message	Number
* Invalid Sample	0
* No 0.020 Agreement	3
* Range Exceeded	0
* Test Sequence Aborted	0
* Subject Refused	0
* Deficient Sample	2
* Calibration Check Out Of Tolerance	0
* Diagnostic Failure	0
* Unstable Reference	0
* Simulator Communication Failure	0
* Calibration Check Correlation Failure	0
* Purge Failure	0
* RFI Detected	0
* Ambient Failure	0
* Improper Sample	0
* Interferent Detected	1
* Simulator Temperature Out Of Range	0
* Simulator Exception Encountered	0

Exception Message Total

6

Evidential Breath Alcohol Test Total

42

I-9000 Calibration Adjustment Record

Date 01/09/2014 Technician User ID 731869

I-9000 Certification Record

Certification Period
From: 12/17/2014 To: 12/17/2015
From: 01/09/2014 To: 01/09/2015
From: To:

Intoxilyzer 9000 (I-9000) Instrument Performance Report (IPR)

Subject Name:

NIMER, DAVID

DOB: 05/31/1991

Sex: Male

Driver License 132600591

State: CO

Zip Code: 80302

Location: BOULDER

POLICE DEPARTMENT

Serial Number: 90-000346

Test Number: 0346150160

Case Number: 15-12043

Date & Time of Offense: 09/17/2015 22:41

I-9000 Maintenance History Record

Date	Technician Name	Description
07/25/2013	732516	07/25/2015 - CALIBRATION VERIFICATION TESTING WAS SUCCESSFULLY COMPLETED. THIS INSTRUMENT IS CERTIFIED BY CDPHE TO PERFORM EVIDENTIAL BREATH ALCOHOL TESTING.
07/24/2013	731869	07/24/2013 - CALIBRATION ADJUSTMENT SUCCESSFULLY COMPLETED.
12/17/2014	732516	CORRECTION TO MAINTENANCE LOG DATED 10/17/2014. CORRECTED DATE IS 12/17/2014
10/17/2014	732516	I-9000 CALIBRATION VERIFICATION TESTING WAS SUCCESSFULLY COMPLETED. THIS INSTRUMENT IS CERTIFIED BY CDPHE TO PERFORM EVIDENTIAL BREATH ALCOHOL TESTING.
12/03/2014	731869	CORRECTION TO MAINTENANCE LOG DATED 11/06/2014. CORRECTED TECHNICIAN NAME IS CMI.
12/03/2014	731869	CORRECTION TO MAINTENANCE LOG DATED 01/09/2013. CORRECTED DATE IS 01/09/2014.
11/06/2013	731869	11/06/2013 - RECEIVED FOR REPAIR - CLOCK ERROR. REPAIRS COMPLETED.
05/21/2013	CMI	05/21/2013 - RECEIVED FOR REPAIR - CLOCK ERROR. REPAIRS COMPLETED.
01/09/2013	731869	I-9000 CALIBRATION VERIFICATION TESTING WAS SUCCESSFULLY COMPLETED. THIS INSTRUMENT IS CERTIFIED BY CDPHE TO PERFORM EVIDENTIAL BREATH ALCOHOL TESTING.
01/09/2014	731869	I-9000 CALIBRATION ADJUSTMENT SUCCESSFULLY COMPLETED.

UNIFORM SUMMONS & COMPLAINT OR PENALTY ASSESSMENT CASE REPORT #15-12043 No.TS 123534

THE PEOPLE OF THE STATE OF COLORADO VS. [Boulder Police]

Defendant (Last Name) NIMER, (First) DAVID, (Middle) GARIBOTTO

Defendant's Address 1700 17th St. #B1, City BOULDER, State CO, Zip Code 80302

Date of Birth 05/31/91, Mo. 05, Day 31, Yr. 91, Age 24, Driver's License Number and Type 13-260-0591, State CO, Race W, Ethnicity NH, Sex M, Height 6'3", Weight 175, Hair BRN, Eyes BRO

Vehicle License Number and Type AKS6414, State AZ, Vehicle Year 2009, Make / Model / Body Style GMC / Yukon / UP, Approximate Location of Violation, City of BOULDER, Boulder County, Colorado, Beat/District Number 1514+ CASCAOE

Vehicle Color (Top/Bottom) WHI, VIN 1GKFK33059R243902, Traffic Accident () Yes () No, Injuries Involved () Yes () No, CDL () CMCL VEH REQ CDL INVOLVED () PLACARDED HAZ MAT ()

YOU ARE SUMMONED AND ORDERED TO APPEAR TO ANSWER CHARGES AS STATED BELOW IN: Registered Owner (Name and Address) () Same as above; or

BOULDER County Court At: 1777 6TH STREET, BOULDER, CO 80306 1035 KIMBARK STREET, LONGMONT, CO 80501 ON Nov 14 20 15 AT 900A

CHARGE(S) [CRS 42-4-237 (2) Code, CRS 42-4-1101 () () Code, CRS 42-4-1409 (1) Code 954, CRS 42-4-1409 (2) Code 956, CRS 42-4-1409 (3) Code 957, CRS 42-4-1301 (1) (a) Code 800, CRS 42-4-1301 (1) (b) Code 801, CRS 42-4-1301 (2) (a) Code 812, CRS 42-4-1301 (2) (a.5) Code 810, CRS 18-13-122]

THE UNDERSIGNED HAS PROBABLE CAUSE TO BELIEVE THAT THE DEFENDANT COMMITTED THE OFFENSE(S) AGAINST THE PEACE AND DIGNITY OF THE PEOPLE OF THE STATE OF COLORADO AND AFFIRMS THAT A COPY OF THIS SUMMONS & COMPLAINT OR PENALTY ASSESSMENT WAS SERVED UPON THE DEFENDANT.

OFFICER-PRINT Ekwo, OFFICER SEL, EMPLOYEE NO. 6774, DATE ISSUED 09/18/15

PENALTY ASSESSMENT / TRAFFIC INFRACTION () OFFENSE ()

My signature is a promise to pay this penalty assessment within 20 days. With payment, I acknowledge guilt of all charges listed above and understand that the points indicated will be assessed against my driver's license. If I do not pay, my signature is my promise to appear in court.

DEFENDANT [Signature], NOTICE: SEE INSTRUCTIONS ON REVERSE SIDE

SUMMONS / TRAFFIC INFRACTION () OFFENSE ()

Without admitting guilt, I promise to appear at the time and place indicated above. If I am under the age of 18 years and not emancipated, I understand that I must notify my parent or legal guardian within 72 hours of receiving a summons into court.

DEFENDANT [Signature], NOTICE: SEE INSTRUCTIONS ON REVERSE SIDE

